

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

Preparation of the 11th Consultation

Combating discrimination in education

Eleventh consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960) (2024-2025)

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

1. Introduction

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, are aligned with UNESCO’s constitutional mandate to “advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social”. The Convention is the first legally binding international instrument focused on the **right to education** and the only one exclusively dedicated to it.

The right to education is one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community in 2015. SDG 4 seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

Representing a powerful tool to advance SDG 4 by ensuring effective articulation between normative and operational work, the Convention has been recognized as a cornerstone of Education 2030 agenda.

The present Guidelines are intended to assist Member States in the preparation of country reports on the implementation of the Convention and the Recommendation in the context of the 11th consultation.

2. Scope of the Consultation

Considering the Education 2030 agenda, the monitoring of the Convention and the Recommendation is of crucial importance to ensure an education that is truly inclusive for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. This is particularly true under the current context in which countries are making efforts to recover from the learning disruption caused by the COVID-19 pandemic. Concrete measures taken by countries in accordance with their legal obligations under these instruments contribute to implementing the Education 2030 agenda.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG 4, efforts are being made to ensure that the components of the targets are included in the guidelines and that these guidelines serve as a valuable contribution to monitoring progress towards SDG 4 targets.

Beyond SDG 4, the Convention is also closely aligned with the normative content on the right to education of other international human rights instruments such as the International Covenant on Economic, Social and Cultural Rights (1966), Convention on the Elimination of All Forms of

Discrimination against Women (1979), the Convention on the Rights of the Child (1989) and the Convention on the Rights of Persons with Disabilities (2006).

In addition, this Consultation is an opportunity to inform the ongoing **UNESCO Initiative on the Evolving Right to Education within a lifelong learning perspective**¹ (launched in December 2021). The Initiative investigates how the right to education could be reinforced placing it within a lifelong learning perspective and in light of the new demands being placed on education. This Initiative builds on the **Report from the International Commission on the Futures of Education**², which suggests to broaden our understanding of the right to education to clearly apply it to all ages and across all times and spaces. The initiative is also in-line with the **Vision Statement of the United Nations Secretary General on Transforming Education**³, and the **Report on the 2022 Transforming Education Summit**⁴ which call for the transformation of education systems to 'include everyone, regardless of circumstance, context or background'. The Initiative on the Evolving Right to Education aims to open a collaborative and participatory discussion about the international framework to ensure the effective enforcement of the right to education and learning throughout life for all. Finally, the Initiative builds on recent inter-governmental dialogues, including the Marrakech Framework for Action for Adult Learning and Education⁵ and the Tashkent Declaration on Early Childhood Care and Education.⁶

It is also important to note that previous consultations on the Convention and Recommendation revealed that countries now understand the right to education in an extended manner. The 11th consultation builds on the findings of the previous national reports to include various areas that have direct repercussions on the right to education such as, for instance, digital learning, climate considerations, lifelong learning entitlement, and the role of non-state actors in education.

3. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are under the obligation to incorporate its provisions into their domestic frameworks. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain States might experience in ratifying the Convention, in particular with respect to their federal structure.

Bearing in mind the differences in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

The reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO's Constitution states that "*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*". Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a national report** on the implementation of these instruments in the context of monitoring consultations.

¹ <https://www.unesco.org/en/right-education/evolving>

² <https://unesdoc.unesco.org/ark:/48223/pf0000379707>

³ https://www.un.org/sites/un2.un.org/files/2022/09/sg_vision_statement_on_transforming_education.pdf

⁴ https://www.un.org/sites/un2.un.org/files/report_on_the_2022_transforming_education_summit.pdf

⁵ [Marrakech Framework for Action | Institute for Lifelong Learning \(unesco.org\)](https://www.unesco.org/en/marrakech-framework-for-action)

⁶ [Tashkent-declaration-ecce-2022.pdf \(unesco.org\)](https://www.unesco.org/en/tashkent-declaration-ecce-2022)

4. Participation in consultations

The reporting period for the 11th consultation on the implementation of the Convention and the Recommendation covers four years (2021-2024).

The Futures of Education Report calls for a new social contract for education, which requires to understand education as a common good and a shared societal endeavour. To ensure this, extensive consultations involving a broad range of stakeholders is needed. The reporting process therefore needs to be **participatory**. This includes ensuring cooperation between ministries of education and other ministries dealing with aspects of the right to education as well as consulting social partners and **civil society organizations** and other relevant bodies.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

In the preparation of reports, Member States are encouraged to provide **substantive and relevant information in a concise manner**. In addition to a description of the constitutional, legislative, administrative, and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

Country reports submitted for previous consultations can be found on the **Observatory on the right to education**⁷ in the monitoring section of the country profile. The information provided in the reports are valuable both for the Observatory on the right to education as well as for **HerAtlas**⁸, the online monitoring tool for girls' and women's right to education. Information and data regarding countries' education systems are also available through the UNESCO Institute for Statistics database⁹. Beyond monitoring purposes, the consultation findings and reports inform broader work - serving for knowledge generation, advocacy, and technical cooperation.

5. Modalities and structure

The Guidelines are structured around three chapters:

- The **first chapter** covers general information on adherence to the Convention.
- The **second chapter** aims to gather information on the implementation of the Convention and Recommendation in the context of Sustainable Development Goal 4. As the most extensive part of the Guidelines, this chapter covers: inclusion and non-discrimination in education (section 1), all levels and forms of education (section 2), quality education provision and learning environment (section 3) and finally, strengthening governance systems (section 4).
- The **third chapter** seeks to obtain information on the methods used to draw the attention of the various authorities in the country to the instruments.

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, through a participatory process, **two types of guidance** are provided:

⁷ <http://www.unesco.org/education/edurights/index.php?action=home&lng=en>

⁸ <https://en.unesco.org/education/girls-women-rights>

⁹ [UIS Statistics \(unesco.org\)](http://uis.unesco.org)

- (1) Open-ended and closed-ended questions to be directly filled in by Member States. Please note that multiple answers may be provided where relevant.
- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

GENERAL INFORMATION:

Country name: Republic of Türkiye

Organization or entity responsible for the preparation of the report: GENERAL DIRECTORATE FOR EU AND FOREIGN RELATIONS

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I. Ratification and applicability of the Convention against Discrimination in Education¹⁰

- Is your country a State Party to the Convention?

☐ Yes

☒ No: Does your country plan to ratify this instrument?

Yes: Please indicate the stage of ratification process reached by your country and whether assistance is needed:

☐ There is interest but no concrete action has been taken

☐ The ratification process has been initiated

☐ The ratification process is close to completion

- Please briefly explain the steps that have been taken and timeline when relevant, any difficulties encountered (legal, institutional, political or practical) in completing the ratification process. And how UNESCO can assist:

☒ No, not considering ratification. Please explain why:

- Is the Convention directly applicable in your country's domestic law?

☐ Yes ☐ No

- Have courts, tribunals and/or administrative authorities adjudicated on issues or violations regarding the right to education?¹¹

☐ No

☐ Yes: Have the provisions of the Convention been invoked?

☐ Yes ☐ No

- Please cite the case law and jurisprudence.

Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the right to education.

II. Information on the implementation of the Convention or Recommendation in the context of Sustainable Development Goal 4 (SDG4)

1. Towards an inclusive non-discriminatory education system

For reference: This section relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity as laid out in Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation.

*It further corresponds to the overall aspiration of SDG4 which aims to “**ensure inclusive and equitable quality education and promote lifelong learning opportunities for all**” by 2030. While it covers all the SDG4 targets, it also specifically covers SDG target 4.5.¹²*

- Please indicate whether the rights and principles laid out in the Convention/Recommendation informed the elaboration of the education legal and/or policy framework:

☐ Yes ☒ No

- If yes, please provide reference:

1.1 Non-discrimination and equality in education

¹¹ Judicial mechanisms play an important role in enforcing the right to education by ensuring legal accountability and therefore contributing to the practical realization of the right to education.

¹² Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

- Please indicate measures adopted to both prevent and eliminate discrimination in education within the meaning of the Convention/Recommendation¹³, and ensure equal access to all levels and types of education (please tick all that apply):

For reference: This notably is covered under SDG target 4.1 and partly target 4.b¹⁴

☒ Legal texts¹⁵ prohibit discrimination and guarantee equal access to education:

- ☒ In pre-primary education (including early learning and care)
- ☒ In primary education
- ☒ In secondary education
- ☒ In technical and vocational education and training
- ☒ In higher education
- ☒ In adult education and alternative learning

- Please indicate the relevant legal provisions:

The right to education has been secured by the Constitution of the Republic of Türkiye, the Basic Law of National Education No:1739, the other Laws regulating the education system, and Development Plans, which are regarded as basic policy documents, and the other legislation regulating the principles related with the type, level and function of education.

- According to the Article 10 of the Constitution (https://www.anayasa.gov.tr/media/7258/anayasa_eng.pdf) entitled “Equality before the law”;

“Everyone is equal before the law without distinction as to language, race, colour, sex, political opinion, philosophical belief, religion and sect, or any such grounds. (Paragraph added on May 7, 2004; Act No. 5170) Men and women have equal rights. The State has the obligation to ensure that this equality exists in practice. (Sentence added on September 12, 2010; Act No. 5982) Measures taken for this purpose shall not be interpreted as contrary to the principle of equality.

¹³ See: Article/Paragraph 1(1).

¹⁴ Which calls on states to “substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes”.

¹⁵ Constitution, laws, decrees, regulations, circulars, etc.

(Paragraph added on September 12, 2010; Act No. 5982) Measures to be taken for children, the elderly, disabled people, widows and orphans of martyrs as well as for the invalid and veterans shall not be considered as violation of the principle of equality.

No privilege shall be granted to any individual, family, group or class.

State organs and administrative authorities are obliged to act in compliance with the principle of equality before the law in all their proceedings.

According to the Article 42 of *the Constitution* entitled as “Right and duty of education”;

“No one shall be deprived of the right of education. The scope of the right to education shall be defined and regulated by law.

Primary education is compulsory for all citizens of both sexes and is **free of charge** in state schools.”

- *The Basic Law of National Education* numbered 1739 determines general framework of Turkish National Education System. In the 4th, 7th and 8th articles of the *The Basic Law of National Education* some provisions are taken to guarantee the right to education for all and to promote equal educational opportunities.

“(4) Educational institutions are open to everyone, regardless of language, race, gender, disability and religion. No privileges can be granted to any person, family, group or class in education.

(7) It is the right of every Turkish citizen to have primary education. Citizens benefit from educational institutions after primary education in terms of their interests, aptitudes and abilities.

(8) In education, equal opportunities and possibilities are provided to all men and women. Necessary aid is provided through free boarding, scholarships, loans and other means to ensure that successful students without financial means are educated to the highest educational levels.”

- Clause (c) of the 1st paragraph of the 301st article of the *Eleventh Chapter of the Presidential 2024 Annual Program* 661, P. 662, P. 663, P.664, Policy and Measures Articles

Article 661: Equality of opportunity will be ensured in children's access to quality, universal, free pre-school education.

Article 662: Educational environments that safeguard children's mental and physical development, support child safety and child well-being will be provided, and preventive mechanisms will be established for students at risk of dropping out of school and education system.

Article 663: The achievement gap between students and the quality gap between schools will be reduced, quality and inclusive education services will be provided in all schools, and for this purpose, human resources will be developed. The quality of resources will be improved and training activities will be expanded to ensure that families, who are an important part of the education process, contribute more in this context.

Article 664: Equality of opportunity in access to quality education will be ensured.

Article 676: Access to education for individuals under temporary protection will be increased.

- According to the 658th objective of the **12th Development Plan (2024-2028)**, "by ensuring that all individuals have equal access to qualified education and lifelong learning opportunities on the basis of the principle of inclusion, the development of their academic, social and professional skills in accordance with international standards, in the fields of analytical thinking, financial literacy, collaborative work and leadership" "The main aim is to ensure that they are competent, that they internalize national, spiritual, moral, human and social values, and that they grow up to be responsible towards the family and society they belong to."

- The 1st Purpose of the **2024-2028 Strategic Plan of the Ministry of National Education** states: "By building an ecosystem where equal opportunities and access to education are provided in basic education, where teaching processes and educational environments are used effectively, students will be transformed into healthy and happy individuals who have the universal competencies required by the age and have adopted national and spiritual values."

- *Lifelong Learning Institutions Regulation* Article 3 Introductions

Course: All kinds of activities that have a certain duration and program, provide the participants with the required knowledge, skills and competence, **and are open to the public and free of charge**, directly or in cooperation with other institutions and organizations

Article 57 Organizing courses within the scope of cooperation

In courses opened in cooperation, **no fee can be charged** from trainees under the name of course fee.

- Please list the prohibited grounds of discrimination in education as laid out in legal texts:

- **The Constitution of Republic of Türkiye**

Article 42: (Right and duty of education)

“No one shall be deprived of the right of education. The scope of the right to education shall be defined and regulated by law. Education shall be conducted along the lines of the principles and reforms of Atatürk, based on contemporary scientific and educational principles, under the supervision and control of the State. Educational institutions contravening these principles shall not be established. The freedom of education does not relieve the individual from loyalty to the Constitution. Primary education is compulsory for all citizens of both sexes and is free of charge in state schools.

The principles governing the functioning of private primary and secondary schools shall be regulated by law in keeping with the standards set for the state schools. (Paragraph added on February 2, 2008; Act No. 5735, and annulled by the decision of the Constitutional Court dated June 5, 2008 numbered E. 2008/16, K. 2008/116) The State shall provide scholarships and other means of assistance to enable students of merit lacking financial means to continue their education. The State shall take necessary measures to rehabilitate those in need of special education so as to render such people useful to society. Training, education, research, and study are the only activities that shall be pursued at institutions of education...”

- **National Education Basic Law No:1739**

Article 4: “Educational institutions, regardless of language, race, gender, disability and religion, are open to everyone. No individual, family, group or class can be privileged in education.”

- **Ministry of National Education Textbooks and Educational Tools Regulation**
(<https://mevzuat.meb.gov.tr/dosyalar/1605.pdf>)

Article 6-1.c) Textbooks offer an approach that supports fundamental human rights and freedoms; and they reject all forms of discrimination.

- Different private school types are defined for foreigners and minorities. These are:

“**International private education institutions** except from higher education institutions may be set up by foreign real or legal persons upon authorization of the Council of Ministers under the provision of the Law of Private Education Institutions that numbered 5580. Only foreign students can attend these international private education institutions.”

“Minority schools which are opened and operated under the provision of the Law 5580 on Private Education Institutions, are guaranteed by the Treaty of Lausanne, are minority pre-school, primary and secondary schools that minority students (Turkish Citizens) can attend to their religious community’s schools.”

Special education and rehabilitation centers are defined as “private education institutions for individuals who need special education in language and speaking, voice disorders, cognitive, physical, social, sensory and behavioural areas.

☒ Policies, programmes and initiatives aim to prohibit and prevent discrimination and ensure equal access to education

☒ In pre-primary education (including early learning and care)

☒ In primary education

☒ In secondary education

☒ In technical and vocational education and training

☒ In higher education

☒ In adult education and alternative learning

- Please provide details:

The right to education is a universal right guaranteed by the Constitution in Türkiye and is **free of charge**. Compulsory education covers the 12-year period from primary school to the end of high school. Distance learning option is available for students who cannot attend school for any reason. Legal action is taken against the parents whose children do not attend school. Coeducational model has been adopted and implemented in Türkiye. There is no gender discrimination in education; on the contrary, positive discrimination policies have been implemented in favour of girls. With the view to involve girls in the education system who are not sent to school for various reasons and to ensure their attendance, some initiatives such as different projects, programs, campaigns are frequently implemented by both public institutions and the private sector, non-governmental organizations, especially the Ministry of National Education.

☒ Combatting discrimination in terms of curriculum:

☒ In pre-primary education (including early learning and care)

- ☒ In primary education
- ☒ In secondary education
- ☒ In technical and vocational education and training
- ☒ In higher education
- ☒ In adult education and alternative learning

- Please provide details:

There are criteria that will be used as a basis for evaluation when examining the draft textbook and educational tools and their electronic content. Some of the criteria taken into consideration when reviewing the draft textbook, educational tools and electronic contents are as follows:

- The content should be prepared with an approach that supports fundamental human rights and freedoms and rejects all kinds of discrimination, taking into account the principle of equality clearly stipulated in the Constitution and the Basic Law of National Education.
- The content should be based on the principle that universal human rights apply to everyone, regardless of race, color, language, religion, political preference, ethnic origin, property or any other discrimination.

The curriculum focuses on promoting values of equality, justice, and human rights across various educational levels. Subjects like social studies, human rights, citizenship, and democracy prioritize teaching about the right to education, equality, equal opportunity, and justice. Content on combating discrimination is integrated into preschool, primary, and secondary education. Additionally, the "human rights, citizenship, and democracy" course specifically emphasizes concepts of equality and justice, reflecting the curriculum's commitment to fostering a society based on these principles.

□ Other measures adopted to both prevent and eliminate discrimination in education and ensure equal access to all levels and types of education:

- **Early Childhood Education and Care**

Preschool education services, which are considered to be the most critical period of an individual's development, are carried out in public/private kindergartens, kindergarten classes and practice classes in our country. **Although it is an optional level of education, education in public preschool education institutions is free of charge for all children.**

In order to ensure access to pre-school education for children for whom classes cannot be opened due to the small number of children, the Ministry has taken measures, developed several education access models and taken special measures.

In order to ensure equality of opportunity in preschool education in villages and similar settlements with small and scattered populations, the number of children required to open a kindergarten class in a settlement was reduced from 10 to 5 with an amendment to the Ministry of National Education Regulation on Opening, Closing and Naming Institutions.

In cases where kindergarten classrooms could not be opened in remote and sparsely populated settlements, the “Mobile Teacher Classroom” model, which is one of the alternative access models, enables a teacher to go to more than one settlement, gather children in a suitable area and provide education; and the “Transport Center Kindergarten Classroom” model enables children to receive education by starting from a remote village and transporting them to the selected transport center accompanied by guiding staff, so that a child can be transported at most 20-25 km.

In order to support children living in underprivileged households who do not have access to preschool education at home, a home-based access model was implemented in which the “My Play Chest Set” containing 52 different materials was delivered to the child and the family through the preschool teacher and the school principal, and the child's development was monitored and supported through regular home visits every month, and the family was

guided. More than 13,000 play chests were delivered to children from families in underprivileged settlements in the 2022-2023 academic year.

In addition, summer schools were expanded for children in pre-school education who could not attend school during the school year. In the summer period of the 2022-2023 academic year, 1000 air conditioners and 1500 stationery sets were provided to the institutions that will open summer education, and trainings were organized for their managers. Thus, more than 55.000 children were provided with free summer education in the summer of the 2022-2023 academic year.

- In the first semester of the 2022-2023 academic year, **one-meal nutrition support** was provided to 60,000 children in underprivileged settlements. In the second semester of the 2022-2023 academic year, one meal nutrition support was provided to all children attending official pre-school education institutions. In the 2023-2024 academic year, one meal nutrition support continues to be provided to all children attending official pre-school education institutions in 11 provinces affected by the earthquakes centered in Kahramanmaraş on February 6, 2023.
- Private information that may cause discrimination is not requested during enrolment in educational institutions, and transparent, objective and objective criteria (such as exam score, school achievement score, etc.) are applied to each student in the admission process to schools entered by exam.

- **Special Education**

Special Education Law No: 573

For the education of individuals with special educational needs at all types and levels, the following measures are being taken:

Special education schools' settings cater to students with special educational needs and offer tailored academic, social, and therapeutic support to enhance their learning and development.

Special education classes are being established.

Students with special educational needs can maintain their education through inclusive education.

Educational services are provided at home or hospital classrooms for those who cannot attend school due to their health issues.

Free transportation is available for students with special educational needs registered in special education schools and special education classes.

Free school meals are available for students attending special education schools.

1.2 Equality of opportunities and inclusion in education

- Please indicate the actions taken/planned to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners in learning processes (*several items may be ticked*):

General measures:

- | | |
|--|--|
| ☒ Legislation provides for inclusive education for all | ☒ Multiple and flexible learning pathways ¹⁷ are provided for |
| ☒ Policy measures aim to enhance inclusion in education for all | ☒ Curricula and teaching methods are inclusive in design ¹⁸ |
| ☒ Teachers are trained on inclusive education ¹⁶ and to value diversity | ☐ Multilingual and intercultural education is supported |
| ☒ Initiatives to address discrimination and promote cultural diversity and mutual acceptance | |
| ☐ Other: | |

• **Opportunities for students with disabilities**

In-service training of teachers, courses and seminars are being organised in order to enhance the knowledge, skills and awareness of teachers, administrators, and the society regarding special education. Written, auditory and visual materials are being designed for students with disabilities. Efforts are underway to strengthen physical infrastructure adapted for students with disabilities. Reading and writing devices enable the translation of written documents into Braille alphabet are now in practice to enable visually impaired people to access to the educational materials.

Besides, free transportation is available for students with special educational needs registered in special education schools and special education classes.

¹⁶ Teachers are prepared to teach all student (beyond just students with disabilities), equipping them with knowledge, values and attitudes that permit every student to succeed. See: [UNESCO policy paper](#): Inclusive teaching: preparing all teachers to teach all students, 2020, p.14.

¹⁷ Multiple and flexible learning pathways are 'entry points and re-entry points at all ages and all educational levels, strengthened links between formal and non-formal structures, and recognition, validation and accreditation of the knowledge, skills and competencies acquired through nonformal and informal education' ([Education 2030 Framework for Action](#), para. 33). This may include student transfers between courses and institutions and diverse learning modalities (online, in-person, full-time, part-time, etc.) to respond to individual needs and interests.

¹⁸ In designing the curricula and teaching methods, care is given to ensure that all students are provided with an inclusive and supportive learning experience that offers them the opportunity to succeed whatever their background.

• **Lifelong learning opportunities**

Individuals are provided with the opportunity to receive diplomas in the formal education age and out, and the opportunity to move to the next education level is provided by means of Open Education Schools.

Through lifelong learning courses, contribution has been made to individuals' skill development in or out of formal education.

If there is a suitable environment and opportunity in the institutions, community-based child care and play rooms with flexible hours and time are created for trainees' children aged 3-6 in order to ensure the active participation for individuals with children in their learning environments in their social, cultural and professional life. In this way, especially the education opportunities for women attendees have been increased.

• **Other Studies**

Increasing Attendance and Enrolment Rates in Secondary Education Project (ODAP) (<https://odap.meb.gov.tr/en/homepage/>), a pilot project, have been implemented to ensure access to the quality education for all learners at the upper-secondary level with different funding bodies and stakeholders. The overall objective of this Project is to drive forward educational attainment and skill levels by providing access to all and combating early school leaving/absenteeism.

Education for Sustainable Development (ESD) in Curriculum

ESD is included in our national curricula applied at pre-primary, primary, secondary and upper secondary education levels. The themes of ESD are covered in curricula, explicitly and / or implicitly, under a single discipline and / or with interdisciplinary approaches.

Curricula for primary and lower-secondary have teaching and learning of key competences part of their lifelong learning strategies. All Curricula, like languages, mathematics, science, identifies key competences that are fundamental for each individual in a knowledge-based society in Türkiye schools systems.

On the other hand, some courses' curricula have themes or units related to ESD (like social science, life science) while some of the courses made of separate subjects related to ESD directly (like human rights and citizenship, law and justice)

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

- **National Education Basic Law No: 1739**

Article 8: “Equality of opportunity shall be provided to all men and women in education. Necessary assistance shall be provided to the successful students who lack financial means through boarding, scholarships, loans and other means. Special measures shall be taken to raise children in need of special education and protection.”

- **Ministry of National Education 2024-2028 Strategic Plan**

Target 3.1 Inclusion in education will be ensured so that all individuals with different abilities, characteristics, needs and knowledge can actively benefit from non-formal education.

Target 3.2 Equality of opportunity for trainees/students benefiting from public education centers will be increased through digital content development studies for distance education.

- In general, what challenges were encountered in the implementation of non-discrimination and equal opportunities principles in education? If needed, brief quantitative information may be added.

Other relevant general measures, including gender equality

- | | |
|---|--|
| ☒ Legislation provides for gender equality in education | ☐ All barriers for pregnant girls and young mothers in education are eliminated to ensure the continuity of their education |
| ☒ Policy measures aim to enhance gender equality | ☐ Re-entry programmes for young mothers are provided for |
| ☐ Gender-responsive education sector planning is undertaken | |

- | | |
|---|---|
| ☒ Providing positive or affirmative action measures | ☐ Ensuring safe and adequate gender-sensitive sanitation facilities ²⁰ |
| ☒ Providing financial incentives and fellowships | ☒ Curricula are rid of all stereotypes ²¹ and bias |
| ☐ Teachers are trained (initial and in-service) on gender equality | ☒ Ensuring gender parity in science, technology, engineering and mathematics (STEM) |
| ☐ Teachers are trained to combat stigmatisation ¹⁹ | ☒ Ensuring gender parity in technical and vocational training education and training (TVET) |
| ☐ Other: | |

In order to increase girls' access to education, efforts are being made to improve the quality and quantity of girls' hostels and to open girls' schools in areas where they are needed.

There are criteria that will be used as a basis for evaluation when examining the draft textbook and educational tools and their electronic content. Some of the criteria taken into consideration when reviewing the draft textbook, educational tools and electronic contents are as follows:

- A reasonable balance should be observed in terms of the distribution of men and women in the examples given and the characters used.
- There should be no expressions such as imputation, prejudice, stereotypes, etc. in the representation of men and women.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

National Education Basic Law No: 1739

Article 8: Equal opportunities are provided for both men and women in education.

¹⁹ ' Stigmatisation is the act of treating someone or something unfairly by publicly disapproving of them' (Cambridge Dictionary).

²⁰ ' Gender-sensitive sanitation includes clean, safe and separate toilets, with access to water and garbage disposal' ([UNGEI blog post](#), Gender-sensitive sanitation, 2018)

²¹ Stereotype is a set idea that people have about what someone or something is like, especially an idea that is wrong' (Cambridge Dictionary).

- What challenges were encountered in achieving gender equality in and through education? If needed, brief quantitative information may be added.

- Does the legal minimum age for marriage conform to international standards (18 years) ²²:

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

☒ Yes ☐ No

- Please provide reference to the relevant laws and provisions and indicate the exceptions to the legal age of marriage as well as the absolute minimum age:

According to the Article 124 of the Turkish Civil Code “No man or woman may marry before completing the age of seventeen. However, the judge may allow a man or woman who has turned sixteen to marry in extraordinary circumstances and for very important reasons.”

National minorities:

For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities.

- | | |
|---|--|
| ☒ Legislation provides for the right to education of national minorities | ☒ Teachers are trained on intercultural education |
| ☐ Policy measures aim to enhance the right to education of national minorities | ☒ Teachers are trained to combat stigmatisation ²⁴ |
| ☐ Policy elaboration includes consultations with local communities | ☐ Multilingual and intercultural education are supported |
| ☒ The right to carry out their own educational activities is legally guaranteed for national minorities | ☐ Native language instruction is ensured for national minorities |
| ☐ Educational standards are established for educational institutions run by national minorities | ☐ Adapting curricula and teaching and learning methods to their needs for national minorities |

²² Please note that according to the Joint general recommendation No. 31 of the Committee on the Elimination of Discrimination against Women/general comment No. 18 of the Committee on the Rights of the Child on harmful practice, para. 20: “a marriage of a mature, capable child below 18 years of age may be allowed in exceptional circumstances, provided that the child is at least 16 years of age and that such decisions are made by a judge based on legitimate exceptional grounds defined by law and on the evidence of maturity, without deference to culture and tradition.”

²⁴ Supra note 15.

- ☐ Positive or affirmative action measures are provided for national minorities
- ☒ Curricula are rid of all stereotypes²⁵ and bias
- ☐ Financial incentives and fellowships are provided for national minorities
- ☐ Other²³:

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

According to the Law 5580 on Private Education Institutions, **minority schools** which are opened and operated under the provision of the Law 5580 on Private Education Institutions, are guaranteed by the Treaty of Lausanne, are minority pre-school, primary and secondary schools that minority students (Turkish Citizens) can attend to their religious community's schools.

Besides, some of the criteria taken into consideration when reviewing the draft textbook, educational tools and electronic contents are as follows:

- There should be no negative generalizations about different cultural and ethnic structures, religions and sects.
- The content should be based on the principle that universal human rights apply to everyone, regardless of race, color, language, religion, political preference, ethnic origin, property or any other discrimination.

- What challenges were encountered in realizing the right to education of minorities? If needed, brief quantitative information may be added.

Indigenous people:

- ☒ Legislation provides for the right to education of indigenous people
- ☐ Financial incentives and fellowships are provided for indigenous people

²³ Please see: [UNESCO report](#) 'The right to education of minorities: Overview of States' measures reported in the 10th Consultation on the 1960 Convention and Recommendation against Discrimination in Education, 2023.

²⁵ Supra note 16.

- | | |
|--|--|
| ☐ Policy measures aim to enhance the right to education of indigenous people | ☒ Teachers are trained on intercultural education |
| ☐ Policy elaboration includes consultations with local communities | ☒ Teachers are trained to combat stigmatisation ²⁶ |
| ☐ The right to carry out their own educational activities is legally guaranteed for indigenous people | ☐ Multilingual and intercultural education are supported |
| ☐ Educational standards are established for educational institutions run by indigenous people | ☐ Native language instruction is ensured |
| ☐ Positive or affirmative action measures are provided for indigenous people | ☐ Adapting curricula and teaching and learning methods to their needs for indigenous people |
| ☐ Other: | ☒ Curricula are rid of all stereotypes ²⁷ and bias |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

- What challenges were encountered in realizing the right to education of indigenous people? If needed, brief quantitative information may be added.

People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations²⁸:

- | | |
|---|---|
| ☒ Legislation provides for their right to education | ☒ Financial incentives and fellowships are provided for |
| ☒ Policy measures aim to enhance their right to education | ☒ Auxiliary assistance is provided |
| ☐ Inclusion in mainstream schools is ensured | ☐ Multiple and flexible learning pathways ³¹ are provided |
| ☐ Positive or affirmative action measures are provided for | ☒ Curricula are rid of all stereotypes ³² and bias |
| ☒ All administrative barriers to access education are removed | ☒ Accelerated learning programmes are provided |
| | ☒ Non-formal and/or alternative education programmes are provided |

²⁶ Supra note 15.

²⁷ Supra note 16.

²⁸ 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' ([UNESCO report](#): The impact of climate displacement on the right to education, 2020, p. 2).

³¹ Supra note 13

³² Supra note 16.

- ☐ Alternative administrative procedures (placement tests, portfolio of evidence, etc.) to overcome administrative barriers²⁹ are provided
- ☒ Teachers are specifically trained to ensure their inclusion
- ☒ Teachers are trained to combat stigmatisation³⁰
- ☐ Other:
- ☒ Language classes to newcomers are provided for
- ☐ Multilingualism and intercultural education are encouraged

Türkiye is currently home to a large number of the refugees / migrants and the people under temporary protection. There is no obstacle for these people to receive both general and vocational education. The Ministry of National Education has initiated studies for Syrians and their children, who have been under temporary protection since the first day of the mass migration movement that started in 2011, to receive education in Türkiye. MoNE sees education not only as a fundamental right for Syrian children, but also as the most basic tool for them to survive the difficult period they live, to ensure that Syrian children are not lost generations and can build a beautiful future for themselves. In this direction policies that increase and improve educational opportunities are being developed for the Syrian children welcomed as guests in Türkiye. Syrians living in all over Türkiye are included in the current education system and provided access to services together with their Turkish citizens. Syrian students continue their education with their Turkish peers from preschool education to the 12th grade in public institutions affiliated to MoNE. There are no obstacles for Syrian students to enrol in public and private schools. There are over 3.000.000 population under temporary protection (Syria) in our country (2024). Approximately 1.000.000 of this population are of educational age. Over 800.000 of the school age population are included in education. Nearly 800.000 of the students are registered in the e-school system, 9.564 in open schools and over 15.000 in MESEM (Vocational training Center).

Syrian Support Personnel (SDP) Program

The Memorandum of Understanding regarding the implementation of the Syrian Support Personnel Program in 23 provinces in cooperation with the Ministry of National

²⁹ While lack of documentation (such as identity papers, birth certificates, residency permits, etc.) should not be an obstacle to access education, these can constitute a barrier to education See: [UNESCO publication](#): Handbook on the right to education, 2018, p. 96.

³⁰ Supra note 15.

Education (MoNE) and UNICEF was signed on 31 October 2023. Within the scope of the program, nearly 2.000 Syrian support personnel are employed by the human resources company contracted with UNICEF and are assigned to schools/institutions affiliated with MoNE. The program aims to facilitate access to education and provision of social services for foreign children.

Education Project for Syrian Children in Türkiye and Turkish Children in Need

It is being carried out on 29.05.2020 in cooperation with MoNE, the Incoming Directorate of Basic Education and the German International Cooperation Agency (GIZ) in order to popularize early childhood education and ensure access to early childhood education. Within the scope of the project, it is aimed to improve early childhood development conditions for Syrian children aged 3-6 and disadvantaged children in the host section.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

12th Development Plan(2024-2028)

676.1 Turkish language skills of students under temporary protection will be improved, and the rate of absenteeism, school dropouts and those leaving formal education will be reduced.

Turkish courses are given through public education centers for the purpose of teaching the Turkish language. 675,576 Syrian national trainees attended Turkish courses at A1, A2 and B1 levels and age levels between 2014 and 2024.

The cooperation system framework between the Directorate of Immigration Management and the Directorate General of Lifelong Learning ;"**Social Adaptation and Life Course Program**" has been extended throughout Türkiye for the purpose of facilitating the social, economic and cultural life adaptation of all adult foreigners (17-65 years old) professionals who have the legal right to stay. As of March 2024, 1,710,784 people, 802,784 women and 907,326 men were trained.

- Have specific measures been adopted for climate displaced persons?

☐ Yes ☐ No

- Please elaborate:

- What challenges were encountered in realizing the right to education of migrants, refugees, asylum seekers, stateless persons and IDPs? If needed, brief quantitative information may be added.

People with disabilities:

- | | |
|---|--|
| ☒ Legislation provides for their right to education | ☒ Mainstream teachers are specifically trained on disabilities |
| ☒ Policy measures aim to enhance their right to education | ☒ Teachers are trained to combat stigmatisation ³³ |
| ☒ Inclusion in mainstream schools is ensured | ☒ Auxiliary assistance is provided |
| ☒ Special schools are used as resource centers to inclusive schools | ☒ Curricula and teaching and learning methods are adapted |
| ☒ Positive or affirmative action measures are provided | ☒ Curricula are rid of all stereotypes ³⁴ and bias |
| ☒ Financial incentives and fellowships are provided | ☒ Education infrastructure and learning materials are adapted |
| ☐ Other | |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

In all provinces of our country, standard special education classrooms, resource education rooms, skills application areas, practice homes, and vocational training workshops are being established to ensure that students with special educational needs have access to equal educational opportunities as their peers.

Increasing The Quality Of Special Education Services For Integratory Education Project (Begep) <https://begep.org/en/homepage/> (2019-2023)

The purpose of the project is to ensure the integration of all students in society by increasing the quality of mainstreaming/inclusion practices in our country. The main

³³ Supra note 15.

³⁴ Supra note 16.

objective of the project is objective is to contribute to an innovative, sustainable and inclusive education system by supporting the development of teachers, school managers and other actors involved in mainstreaming/inclusion practices.

- What challenges were encountered in realizing the right to education of people with disabilities? If needed, brief quantitative information may be added.

Students from poor households:

- ☒ Financial incentives and fellowships for school enrolment are provided
- ☒ Teachers are trained to combat stigmatisation³⁵
- ☒ Transport, meals and education material are subsidised or provided free of charge beyond compulsory education
- ☒ Curricula are rid of all stereotypes³⁶ and bias
- ☒ Positive or affirmative action measures are provided
- ☐ Other:

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

National Education Basic Law No:1739

Article 8: Necessary services such as dormitories, scholarships and loans are provided for successful students with limited financial means.

- What challenges were encountered in realizing the right to education of students from poor households? If needed, brief quantitative information may be added.

³⁵ Supra note 15.

³⁶ Supra note 16.

2. Progress made with respect to implementing the right to education across all levels and forms of education

2.1 Early childhood care and education

For reference: Early childhood care and education (ECCE) is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of ECCE over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment No. 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation³⁷ and more recently, the Tashkent Declaration and Commitments to Action for Transforming Early Childhood Care and Education³⁸. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.

- Please indicate the measures taken to ensure access to quality ECCE (*several items may be ticked*):

- | | |
|--|--|
| ☐ Prior to pre-primary education, ECCE services are free | ☒ ECCE services respect a child’s need for early cognitive and social development, |
| ☐ Prior to pre-primary education, ECCE services are affordable | foundational learning, responsive care, nutrition, health, safety, protection, and play. |
| ☒ ECCE services are accessible on a non-discriminatory basis | |

- Please elaborate further on the measures taken:

Preschool education services, which are considered to be the most critical period of an individual's development, are carried out in public/private kindergartens, kindergarten classes and practice classes in our country. Although it is an optional level of education, education in public preschool education institutions is free of charge for all children.

In order to ensure access to pre-school education for children for whom classes cannot be opened due to the small number of children, the Ministry has taken measures, developed alternative education access models and taken special measures.

In order to ensure equality of opportunity in preschool education in villages and similar settlements with small and scattered populations, the number of children required to open a kindergarten class in a settlement was reduced from 10 to 5 with an amendment to the Ministry of National Education Regulation on Opening, Closing and Naming Institutions.

In cases where kindergarten classrooms could not be opened in remote and sparsely populated settlements, the “Mobile Teacher Classroom” model, which is one of the

³⁷ Which states that “ECCE is part of the right to education and the main foundation for holistic human development”.
³⁸ Which commits states to “Enhance policy and legal frameworks to ensure that the right to education includes ECCE”

alternative access models, enables a teacher to go to more than one settlement, gather children in a suitable area and provide education; and the “Transport Center Kindergarten Classroom” model enables children to receive education by starting from a remote village and transporting them to the selected transport center accompanied by guiding staff, so that a child can be transported at most 20-25 km.

In order to support children living in underprivileged households who do not have access to preschool education at home, a home-based access model was implemented in which the “My Play Chest Set” containing 52 different materials was delivered to the child and the family through the preschool teacher and the school principal, and the child's development was monitored and supported through regular home visits every month, and the family was guided. 13,200 play chests were delivered to children from families in underprivileged settlements in the 2022-2023 academic year.

In addition, summer schools were expanded for children in pre-school education who could not attend school during the school year. In the summer period of the 2022-2023 academic year, 1000 air conditioners and 1500 stationery sets were provided to the institutions that will open summer education, and trainings were organized for their managers. Thus, 55,493 children were provided with free summer education in the summer of the 2022-2023 academic year.

Increasing Access and Quality of Early Childhood Education (ECE) Project (2020-2024)

Brief description of the project and main objectives: The purpose of this Project is to increase quality of and access to early childhood education (ECE) services for 0-to-6-year-old children especially in the most vulnerable communities and to expand ECE services.

Achievements/ Expected Outputs: ECE services are expanded for 0-6-year-old children, especially for the most vulnerable communities.

The quality of ECE services is improved based on revised curriculum, new materials and improved national standards.

Families’ beliefs and attitudes regarding the quality and value of ECE services, especially in the most vulnerable communities, is positively changed.

- Is compulsory and free of charge pre-primary education available?

- ☐ Pre-primary education is compulsory. [Please provide the age of enrolment and duration:](#)

Pre-school education is not compulsory in Türkiye. Pre-primary education in Türkiye is free for pre-school children aged 36-69 months at educational institutions affiliated to Ministry of National Education.

However, According to the **Regulation of special education services** (<https://www.mevzuat.gov.tr/mevzuat?MevzuatNo=24736&MevzuatTur=7&MevzuatTertip=5>) **Article 11:** Pre-school education is compulsory for those with special educational needs who have reached the age 36 months. For these students, special education schools or special education classes can be opened, and their education can also be provided through inclusive education.

- ☒ Pre-primary education is **not** compulsory.

- ☒ Pre-primary education is free of charge for all. [Please provide the duration and indicate the extent to which it is free:](#)

National Education Basic Law No:1739

(A-Early childhood education) Article 19: “Pre-school education covers the education of children who have not reached the age of compulsory primary education.”

This education is voluntary.

Regulation on Preschool Education and Primary Education Institutions Article5

(a) “Children aged 57-68 months are enrolled in kindergartens, nursery classes and practice classes as of the end of September of the year of enrolment. After the enrolment of children who reside in the school's registration area and who will start primary school in the next academic year, children aged 36-56 months can be enrolled in nursery and practice classes and 45-56 months in kindergarten classes with adequate physical facilities.” **(b)** “In schools where there are not enough children to form a group, children aged 36-68 months can be enrolled in the same kindergarten class.”

Article 67: “Preschool education is free of charge in official preschool education institutions. However, pre-school education institutions charge a contribution to support the basic needs of children during their time at school, their self-care processes and the implementation of the education program. This contribution fee is determined by the contribution fee determination commission in April”

- ☐ Pre-primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

Pre-primary education

The first paragraph of Article 67 of Regulation on Pre-School and Primary School Institutions by Ministry of National Education states that “pre-school education is free of charge in public preschool education institutions”. With this statement, access to free education is guaranteed in public preschool education institutions.

According to the first paragraph of the Article 6 of the same regulation; “It is essential to carry out normal training for 6 hours of activity, each of them lasts 50 minutes a day. The activities include the time of starting the day, playing, feeding, cleaning, activity, resting and evaluating the day. However, dual education is compulsory in schools where there are children not enrolled in registration area.” With this statement, enrolment of the children who are on the candidate registration list of each school and who will start primary school next year is ensured.

The following statement exists in the first paragraph of the Article 82 of the same regulation, "To ensure access of preschool education to children in residential areas where the preschool-aged population is not dense so the schools cannot open, or where the physical conditions are insufficient and the preschool-aged population is dense; mobile teacher classroom, mobile classroom, transport center kindergarten, summer education and similar models of access to flexible time education can be applied, and mobile teacher can be assigned. At least 200 activity hours of training per year is provided in different access models to be implemented. Training in one day cannot be less than 2 (two) hours of activity. Children who could not benefit from pre-school education are registered in the summer months, especially the children who will start primary school in the next school year”. According to this statement, alternative and completely free access models are applied for unschooled children.

Importance accorded to early childhood education is gradually increasing in the context of reducing poverty through generations and increasing equality of opportunities. Within this scope, the objective is to ensure that every child attends preschool education minimum one year before primary education and to increase the schooling rate at age 5.

Further, it is obligatory for nurseries, day care centres and children clubs operated by the private sector to allocate 3% of their current capacities for disadvantaged and poor children. Besides, children with disabilities who need special education benefit from education services free of charge.

- What challenges were encountered in realizing early childhood care and education and pre-primary education?

- | | |
|---|---|
| ☐ Limited access | ☐ Poor learning outcomes |
| ☐ Issues of equity and inclusion | ☐ Low number of professionally trained educators |
| ☐ Poor quality programmes | ☐ Lack of support to families |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

Increasing Quality and Access in Early Childhood Education (ECE)" Project 2020-2023 <https://erkencocuklukegitimi.org/en>

Within the scope of the "Increasing Quality and Access in Early Childhood Education (ECE)" Project, media campaigns and awareness-raising activities are carried out to inform the public of the importance of ECE by engaging with family and community. For example, a 39-episode cartoon series is being produced to support play-based early learning at home, foster young children's love of learning and increase awareness of the significance of early childhood education. A study on parents' knowledge, attitudes, and practices (KAP) towards early childhood education services in Türkiye was conducted as part of the Project. The study findings will provide a basis for the community activities to inform parents and caregivers to support their children's education, was conducted throughout the Project.

2.2 Primary and secondary education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide "12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory."

Primary education

- Please provide the age of enrolment and duration of primary education:

National Education Basic Law No:1739 (B- Primary Education) Article 22:” Compulsory primary education covers children in the 6-14 age group. Children who have completed 72 months of age on December 31st of that year are enrolled in the first grades of primary schools. However, issues related to the early start of school or postponement of enrolment depending on the developmental status of the child shall be regulated by regulation.”

Regulation on Preschool Education and Primary Education Institutions (6) enrolment in primary school: a) “Children who are 69 months old by the end of September of the year of enrolment are enrolled in the first grade of primary schools. In addition, children aged 66, 67 and 68 months who have a written request from their parents are also enrolled in the first grade of primary school.”

b) “School directorates direct children aged 69, 70 and 71 months to pre-school education or postpone their enrolment for one year upon the written request of their parents.”

- Is primary education compulsory and free of charge?

- ☒ Primary education is compulsory
- ☐ Primary education is **not** compulsory.
- ☒ Primary education is free of charge.
- ☐ Primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

Primary education is compulsory for 8 years; 4 years primary school and 4 years secondary school. The Article 42 of the Constitution of the Republic of Türkiye states that " **Primary education is compulsory for all citizens both girls and boys, and is free of charge in state schools.**"

In the second paragraph of Article 15 of Regulation on School Family Association of the Ministry of National Education, the following provision takes place; "Associations cannot force parents to make donations under any circumstances, and during the school enrolment period donations cannot be collected."

In addition, the following provision exists in the Article 16 of the Basic Law of National Education No. 1739; "Cooperation between the school and the family is provided to contribute to the realization of the aims of educational institutions. For this purpose, school-family associations are established in schools. School-family associations can accept in-kind and cash donations in order to bring effectiveness and efficiency to the education and training services in schools, to meet the basic needs of the students having no financial means. In order to make financial contributions, they can organize social and cultural events and campaigns, and run open spaces, canteens, saloons and similar places within the schools or have them run. Parents of students cannot be forced to donate under any circumstances. The procedures and principles regarding all the followings are regulated by the regulation jointly prepared by the Ministry of Finance and the Ministry of Education: the establishment and operation of School-Family Association; the formation and election types of association agencies; financial contributions from social and cultural activities; distribution locations, rates, expense and inspection of incomes from running open spaces, canteens, salons and similar places or having them run.

In line with the principle of equal opportunities for all, several projects are implemented by public, private sector and NGOs to ensure compulsory education age group benefits from free and quality primary and secondary education and support individuals who drop out of education early to continue their education.

Since 2003, all course books have been distributed free of charge at the primary and secondary education levels of public and private schools.

Additionally, free accommodation and boarding facilities are provided to students. It is aimed to expand the boarding facilities across the country for all children in need is expanded to reduce transportation needs to schools and to minimize students' dropout living under unfavourable conditions. Transportation services are provided for students living in remoted areas to ease their access to primary and secondary education.

- What challenges were encountered in realizing primary education?

- ☐ Limited access
- ☐ Issues of equity and inclusion
- ☐ High dropout rates
- ☐ Poor quality programmes
- ☐ Other:
- ☐ Poor learning outcomes in:

Foundation literacy

Numeracy

Social and emotional learning

Others
- ☐ Disparity in learning outcomes
- ☐ Low number of professionally trained teachers

- Please elaborate. Brief quantitative information may be added.

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training.

- Please provide the age of enrolment and duration of lower secondary education:

Regulation on Preschool Education and Primary Education Institutions Article 7
Enrolment in lower secondary school: “Students who have completed primary school education and have not left the age of compulsory education as of the end of September when enrolment is made are enrolled in secondary school through the e-school system based on their residential address information in the national address database. The duration of education is 4 years.

- Please provide the age of enrolment and duration of upper secondary education:

Regulation on upper secondary education
(https://ogm.meb.gov.tr/meb_iys_dosyalar/2016_11/03111224_ooky.pdf)

Article 21: “To enrol in secondary education institutions, one must complete secondary school or imam-hatip secondary schools and must not be over 18 years of age at the start of the academic year. Students who do not meet the age requirement are not enrolled in formal secondary education institutions.

The duration of education is 4 years.

- Is lower and upper secondary education compulsory and free of charge?

☒ Lower secondary education is compulsory.

☐ Lower secondary education is **not** compulsory.

☒ Lower secondary education is free of charge.

☐ Lower secondary education is **not** free of charge.

☒ Upper secondary education is compulsory.

☐ Upper secondary education is **not** compulsory.

☒ Upper secondary education is free of charge

☐ Upper secondary education is **not** free of charge.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

The provision exists in the Article 42 of the Constitution, "Primary Education is compulsory for all citizens, both girls and boys and is free of charge in public schools." In this context, students do not make payment such as exam fee, book fee or registration fee. This provision exists in the same article, “The State provides scholarships and other necessary assistance to successful students who lack financial means in order that they can continue their education. The State takes precautions to make the students, in need of special education due to their situation, beneficial to society. ” In Law on School *Boarding* Houses No. 2698 and Law on Educating Unpaid Boarding or Beneficiary Students in Primary and Secondary Education and Social Aids for Them No. 2684, It is ensured that necessary measures will be taken to provide equality of opportunity and possibility towards being a social State.

According to the Article 26 of the Basic Law of National Education No. 1739, “Secondary Education covers all general, vocational and technical education institutions and vocational education centers providing four-year compulsory formal or non-formal education based on primary education. Those who graduate from these schools and institutions receive a diploma according to the characteristics of the program they complete. However, it is compulsory for vocational education center students to complete the difference courses determined by the Ministry of National Education in order to receive the diploma. Besides, in the Provisional Article 3 of the same law this provision exists, "Compulsory secondary education is implemented as of 2012-2013 academic year".

According to Article 8 of the The Basic Law of National Education No. 1739, “Equal means and opportunities for girls and boys in education are provided. Necessary assistance are provided through free boarding, scholarships, loans and other means in order to ensure successful students who lack financial means to study up to the highest education levels. Special precautions are taken to raise children in need of special education and protection."

In line with the principle of equal opportunities for all, several projects are implemented by public, private sector and NGOs to ensure compulsory education age group benefits from free and quality primary and secondary education and support individuals who drop out of education early to continue their education.

Since 2003, course books have been distributed **free of charge** at the primary and secondary education levels.

Additionally, free accommodation and boarding facilities are provided students. It is aimed to expand the boarding facilities across the country for all children in need is expanded to reduce transportation needs to schools and to minimize students’ dropout living under unfavourable conditions. Transportation services are provided for students living in remoted areas to ease their access to primary and secondary education.

Like all stages and types of compulsory education in Türkiye, vocational and technical education is also free of charge. Depending on the results of a national examination held at the central level in the final year of secondary school, students can enrol in vocational and technical secondary education institutions. The books to be used

during education and materials to be used in workshops are provided by the State, but costs on students' clothing and transportation to the school are provided by their families. Apprenticeship education is in the scope of 12-year compulsory education. Skill training in enterprises is provided and State contribution to the fee paid to the students by the enterprises is also provided. Students in 10th, 11th and 12th grades receiving vocational and technical education are insured against occupational accidents and occupational diseases by the State. All vocational and technical secondary education graduates are given the title of technician.

- Please indicate whether the legal minimum age for employment is aligned with the end of compulsory education:

For reference: The employment laws and those related to compulsory education are interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

Yes o No o

- Please provide reference to the relevant laws and provisions and indicate how the provision is enforced:

- Labor Law Article:71

“The age of employment and the prohibition on employing children; Employment of children who have not completed the age of fifteen is prohibited. However, children who have completed the full age of fourteen and their primary education may be employed on light works that will not hinder their physical, mental and moral development, and for those who continue their education, in jobs that will not prevent their school attendance. Children who have not completed the age of fourteen may be employed in artistic, culture and advertising activities that will not hinder their physical, mental and moral development, and that will not prevent their school attendance on the condition that a written contract is made and permission is obtained for each activity separately.

In the placement of children and young employees in jobs and in the types of work where they are employable, their security and health, physical, mental and psychological development as well as their personal suitability and capability shall be taken into consideration. The job the

child performs must not bar him for attending school and from continuing his vocational training, nor impair his pursuance of class work on a regular basis.

Jobs that are prohibited for children and young workers under the age of eighteen, and jobs to allow young workers to work, who have completed fifteen years of age but have not completed eighteen years of age; light jobs for children who have completed fourteen years of age and have completed the compulsory primary school age; jobs and working conditions for young workers who have completed sixteen years of age and children who not completed eighteen years of age shall be determined in a regulation of the Ministry of Labour and Social Security to be issued within six months. (1) (2) (Amended fourth paragraph: 4/4 / 2015-6645 / 38 art.)

The working hours of children who have completed their basic education and yet who are no longer attending school shall not be more than seven hours a day and more than thirty-five hours a week; and for the children who are employed in the artistic, cultural and advertising activities working time shall not be more than five hours a day and thirty hours a week. However this working time may be increased up to forty hours a week for the children completed the age of 15. The working hours during the education term of the children who receive preschool education and attend school may be at most two hours a day and ten hours a week, outside the education hours. The working hours for holiday terms shall not exceed the periods set forth in the fourth paragraph above. (3) (Paragraph added on 4 April 2015 by Article 38 of the Law No. 6645)

The scope of artistic, cultural and advertising activities, the work permit of the children to be employed in such activities, the working periods and breaks according to age groups and types of activities, the work environment and its conditions, the procedures and principles regarding the payment of the wage as well as other issues shall be laid down in a regulation to be issued by the Ministry of Labour and Social Security, by receiving the opinions of the Ministry of Family and Social Policies, the Ministry of Culture and Tourism, the Ministry of Health, the Ministry of National Education and the Supreme Board of Radio and Television.”

- *Regulation On Procedures And Principles Of Employment Of Child And Young Workers*
(<https://www.mevzuat.gov.tr/mevzuat?MevzuatNo=5457&MevzuatTur=7&MevzuatTertip=5>)

- What challenges were encountered in realizing secondary education?

- | | |
|---|--|
| ☐ Limited access | ☐ Poor learning outcomes |
| ☐ Issues of equity and inclusion | ☐ Low readiness of primary graduates |
| ☐ High dropout rates | ☐ Low number of professionally trained teachers |
| ☐ Poor quality programmes | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

2.3 Higher education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3³⁹, and target 4.4⁴⁰. Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights (1966) further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”. Higher education includes technical and vocational education and training.

- Please indicate efforts made to ensure that higher education, including technical, vocation education and training, is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items may be ticked):

- ☒ Higher education is free of charge
- ☐ Higher education is accessible on the basis of individual capacity (as assessed by reference to relevant qualifications and experience)
- ☐ Higher education is accessible through financial incentives and scholarships
- ☒ Higher education is accessible through positive or affirmative action measures
- ☐ Higher education is accessible through credit transfer system between states
- ☐ Higher education allows for multiple and flexible learning pathways (flexible entry and re-entry, recognition, validation, and accreditation of knowledge and skills acquired through non-formal and informal education).
- ☐ Other:

³⁹ Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

⁴⁰ Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, university supplies, transport, accommodation). Brief quantitative information may be added.

- What challenges were encountered in realizing higher education?

- | | |
|---|--|
| ☐ Limited access | ☒ Low number of professionally trained professors (particularly in applied vocational and technical schools) |
| ☐ Issues of equity and inclusion | |
| ☐ Poor quality programmes | ☐ Insufficient mechanisms to ensure smooth transition from secondary to tertiary |
| ☐ Poor learning outcomes | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

2.4 Adult education and alternative learning

For reference: Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the measures taken to establish a system of continuing education and equitable access to learning and training opportunities (several items may be ticked):

- ☒ Provision of education for persons who have not received or completed the whole period of their primary education
- ☒ Provision of literacy programmes
- ☒ Provision of continuous learning (such as learning programmes to develop knowledge, skills, abilities, or competencies for personal and professional development)
- ☒ Provision of free of charge learning opportunities
- ☒ Provision of professional training including reskilling and upskilling programmes

- ☐ Recognition, validation and certification of non-formal and informal learning
- ☐ Provision of free of charge career guidance and counselling
- ☐ Lifelong learning entitlements including learning accounts, vouchers, etc.
- ☐ Other:

- Please elaborate further on the measures taken:

Lifelong learning, with its flexible structure free from any kind of constraints such as place, time, age and educational level, is a comprehensive concept that encompasses many types of learning including continuous education, adult education and informal education. Lifelong learning directly targets individuals and society, supporting equal opportunities, social integration, and economic growth. Directorate General for Lifelong Learning, which brings together the informal and adult education units of the MoNE under one organisation, aims to reveal the full potential of individuals and enable them to lead active and fulfilling lives through the education it provides. The organisation continues its work with the mission of "Providing guidance services throughout life in the transformation process of the learning society; supporting the individual to take responsibility for the development of humanity by improving knowledge, consciousness, and skills; and providing quality education that can be certified and monitored.

Literacy Courses

Literacy course programs are offered free of charge. Even if one person who cannot read and write applies to lifelong learning centers, there is the possibility to open a course for this person. The work on developing materials to support the Adult Literacy Program gained momentum with the start of the Literacy Campaign. Following the Intensive Basic Level Literacy Training Program, a Fast Intensive Basic Level Literacy course materials were prepared and distributed to all public education centers. Materials such as textbooks etc. prepared in this context were moved to digital media and mobile applications were developed.

Individuals who have completed the literacy program have access to education through Open Secondary School, Open High School, Vocational Open Education High School, Open Education Religious High School.

Open Education Schools

These are schools that have been opened to provide education at the level of formal education to citizens who have exceeded the formal education age limit and to citizens who cannot continue their education due to reasons such as disability, detention, illness, lack of school or access to education.

In open education schools; training is carried out with TV and Radio and is supported by printed materials. They are also published on the internet as e-books. Courses taught by distance education are supported by lecture videos, PDF textbooks, course materials and other digital materials on the internet through the MEB EBA (Education Information Network).

Lifelong learning centers

These are institutions that organize free courses in professional, social, social, economic, sportive and cultural areas, to citizens of all ages, level of education, income, social status and cultural level in line with their interests, talents and expectations. And they are easily accessible institutions in adult education.

Public education centers carry out their activities in education rooms, especially in provinces, districts and villages, in prisons and correctional facilities, in hospitals that require rehabilitation, in shanty areas, in public and private establishments, in buildings belonging to formal education institutions and in other places where they are needed. There is no limit to age and education to benefit from non-formal education services. However, due to the nature of the program to be implemented, age and education level can be required.

General and vocational education programs are offered to individuals in lifelong learning centers. These courses are free of charge. It is also emphasized in the Regulation on Lifelong Learning Institutions that it is free of charge.

Within the scope of lifelong learning activities, course programs are updated due to needs and new programs are developed. The number of course programs, which was 321 in 2007, reached 3,738 in 75 fields as of 2023. Additionally, awareness and skill training

programs related to literacies such as digital literacy, finance, health, ecology, and social media, which are among the 21st-century skills based on the needs of the era, have been organized.

People can learn about learning opportunities through lifelong learning Web Portal <http://www.hbo.gov.tr/>

People's access to education is increased through HBÖTV <http://www.hbo.gov.tr/HBOTV>.

Studies are carried on spreading distance education applications in the field of lifelong learning. <http://e-ogrenme.gov.tr>. General Directorate for Lifelong Learning Distance Learning System has been launched and more than 40,000 attendees have been trained since March 2019.

- What challenges were encountered in realizing adult learning and education?

- | | |
|---|---|
| ☐ Limited access | ☐ Limited funding |
| ☐ Issues of equity and inclusion | ☐ Poor learning outcomes |
| ☐ Poor quality programmes | ☐ Low number of professionally trained educators |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

3. Quality education provision and learning environment

For reference: Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to "build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all".

3.1 General measures

- Please indicate whether the legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of public education institutions regarding:

- ☒ State monitoring and inspections
- ☐ Health and sanitation

- ☐ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))
- ☐ Infrastructure
- ☒ Curriculum
- ☐ Student-teacher ratio
 - ☒ School fees (if relevant)
- ☐ Other

National Education Basic Law Article 17: Education-related activities of all public, private and voluntary organizations, is under the supervision of the MoNE in terms of its suitability for its purposes of national education.

Regulation of Private Education Institutions Article 53 While determining the tuition fee of intermediate classes of schools, the wage cannot be increased by more than a certain amount.

Curriculum: There are criteria that will be used as a basis for evaluation when examining the draft textbook and educational tools and their electronic content.

- Please elaborate on each of the measures taken:

You may include information on policies, protocols or codes of conduct.

The following criteria are sought in the materials used in the learning environment:

- The principle of social equality should be observed in the treatment of topics or examples, in the description of people and in the presentation of events.
- A reasonable balance should be observed in terms of the distribution of men and women in the examples given and the characters used.
- There should be no attributions, prejudices, stereotypes, etc. in the representation of men and women.
- Written or visual elements for different disability situations should be included in the examples given and the characters used.
- The content should not contain any messages or insinuations such as fear, violence, insults, humiliation, sexual elements, etc. that may have a harmful effect on the students.
- The principle of pluralism in content should be observed.

Expressions that humiliate the political views or way of thinking of a segment of the society or that may create prejudice against them should not be included.

- What challenges were encountered in realizing quality education?

☐ Non-supportive or inadequate learning environments

☐ Violence in schools

☐ Cost of education

☐ Conflicts or crises

☐ Other:

☐ Low quality educational infrastructure and materials

☐ Inadequate parental support to education

☐ Long distances to schools

- Please elaborate. Brief quantitative information may be added.

3.2 Education personnel

For reference: Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels and regarding the training for the teaching profession (several items may be ticked):

☒ Teacher training is provided without discrimination.

☐ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels).

☒ Initial training and continuous professional development are provided.

☒ Minimum standards and qualifications required for the teaching profession.

☒ Measures taken to strengthen the social status and attractiveness of the teaching profession.

☒ Measures taken to promote diversity in the teaching workforce, including to redress gender imbalances at different levels of education.

☐ Establishment of performance monitoring systems.

☐ Measures taken to increase women in leadership positions in education.

☐ Other:

The criteria required for those to be selected as teachers are clearly stated by law. In the National Education Basic Law No. 1739, the definition and criteria of teaching profession is specified as follows:

“Teaching is a speciality profession that takes on the State's education, training and related management duties. Teachers are obliged to perform these duties in accordance with the objectives and basic principles of Turkish National Education. Preparation for teaching profession is provided by general culture, special field education and pedagogical formation. it is essential to ensure that prospective teachers receive higher education in order to acquire the qualifications mentioned above, regardless of their level of education. This education is arranged in a way to enable horizontal and vertical transitions at the pre-undergraduate, undergraduate and graduate levels ”

The criteria required in teaching profession are determined by the Ministry of National Education. Initial training is applied to prospective teachers who have just started teaching. The content and duration of the programs prepared for the teachers working in private education institutions before the candidate teaching process are different from the programs applied to the other candidate teachers. Directorate General for Teacher Training and Development in MoNE is responsible for the continuous professional development of teachers. In this context, face-to-face and distance education are planned and implemented. Universities, relevant institutions and non-governmental organizations collaborate within the scope of professional development of teachers.

- Please elaborate on each of the measures taken:

- What challenges were encountered in the education personnel?

- | | |
|--|---|
| ☐ Shortages of teaching staff | ☐ Low quality educational infrastructure and materials |
| ☐ Lack of qualified, trained and motivated teaching staff | ☐ High student – teacher ratio |
| ☐ Lack of training centres | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

3.3 Respect for human rights and fundamental freedoms

For reference: Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.⁴¹ Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the future consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms // 2023 Recommendation on [...] will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items may be ticked):

☒ Curriculum includes human rights education.

☒ Educational and/or extracurricular activities are organized on human rights education.

☐ Other:

- One of our basic education courses is "Human Rights, Citizenship and Democracy." Besides, the content of all courses are designed to pay attention to human rights and equality. The same idea is present in newly developed curriculums.

There are criteria that will be used as a basis for evaluation when examining the draft textbook and educational tools and their electronic content.

- **Pilot Project On Digital Citizenship Education in Türkiye (2023-2025)**
(<https://www.coe.int/en/web/ankara/hf-iii-pilot-project-on-digital-citizenship-education-in-t%C3%BCrkiye>)

The action “Pilot project on digital citizenship education in Türkiye” aims to promote human rights, fundamental freedoms and democracy in schools by empowering students in their digital presence through digital citizenship education (DCE) at the lower secondary level in Türkiye. It proposes a series of complementary measures to introduce the concept of digital citizenship and its essential core competences, which are grouped under three clusters as being online, wellbeing online and it is my right with reference to the DCE tools of Council of Europe in education institutions in Türkiye in consultation with key stakeholders and end beneficiaries. This action is implemented within the joint programme

⁴¹

Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”.

of the European Union and the Council of Europe “Horizontal Facility for the Western Balkans and Türkiye”, and it is running from 2023 until 2025.

What are the goals and objectives of the action?

-to support the efforts of the Ministry of National Education in adapting competences for democratic culture in the education system

-to promote human rights, fundamental freedoms and democracy in schools by empowering students in their digital presence through digital citizenship education (DCE) at the lower secondary level in Türkiye

- **Project for Strengthening Democratic Culture in Basic Education (2018-2023)**
([https://www.coe.int/en/web/ankara/joint-project-on-strengthening-democratic-culture-in-basic-education#{%2233394687%22:\[1\]}](https://www.coe.int/en/web/ankara/joint-project-on-strengthening-democratic-culture-in-basic-education#{%2233394687%22:[1]}))

The European Union – Council of Europe Joint Project “Strengthening Democratic Culture in Basic Education” aims to integrate a democratic school culture that corresponds with universal core values as well as fundamental rights and freedoms into the Turkish national education system. The specific objectives of the Project are:

-Strengthening democratic values and practices in schools and school communities,

-Strengthening the capacity of stakeholders including policy makers, education administrators both at the Ministry of National Education and at provincial level, inspectors, school principals, teachers, parents, and local civil society organisations (CSO) on democratic school culture,

-Raising awareness on democratic school culture in and beyond schools.

- Please elaborate on each of the measures taken:

When examining the draft textbook and educational tools and their electronic content, the review criteria regarding human rights and fundamental freedoms are as follows:

- The content should be prepared with an approach that supports fundamental human rights and freedoms and rejects all kinds of discrimination, taking into

account the principle of equality clearly stipulated in the Constitution and the Basic Law of National Education.

- The content should not contain elements that would violate the rights and freedoms of individuals.
- The regulation of content should be based on the principle that all people are equal and free.
- Equality, freedom of religion and conscience, freedom of thought and expression, justice, social peace and human rights should be respected in the content.

The content should be based on the principle that universal human rights apply to everyone, regardless of race, colour, language, religion, political preference, ethnic origin, property or any other discrimination.

3.4 Non-state actors in education

For reference: Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for non-state education provision⁴².

- Please indicate the measures taken to ensure the provision of quality non-state education (several items may be ticked):

☒ Legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation⁴³ explicitly apply to non-state educational institutions. [Please specify:](#)

The Law 5580 on Private Education Institutions

☐ Policies aim to guarantee that the development of non-state education does not generate discrimination and that non-state actors offer a relevant alternative (without supplanting public education). [Please specify:](#)

☐ Legal provisions provide for the rights of the parents /legal guardians for providing religious and moral education for their children. [Please specify:](#)

⁴² Private, faith-based, NGOs, community actors.

⁴³ See: Article/Paragraph 1(1).

☒ Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. [Please specify what is covered:](#)

- ☒ Registration
- ☒ State monitoring and inspections
- ☒ Qualifications of teachers
- ☒ Health and sanitation
- ☒ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))
- ☒ Infrastructure
- ☒ Curriculum
- ☒ Student-teacher ratio
- ☒ School fees
- ☒ School closures
- ☐ Other

- [Please](#) elaborate:

The conditions and the standards needed to establish and function a private education institution are defined in law No: 5580.

- [What challenges were encountered in non-state education provision?](#)

- | | |
|---|---|
| ☐ Low quality educational infrastructure and materials | ☐ Issues in terms of equity and inclusion |
| ☐ Low number of professionally trained teachers | ☐ Weak government regulatory and monitoring capacity |
| ☐ High student – teacher ratio | |
| ☐ Other: | |

- [Please elaborate. Brief quantitative information may be added.](#)

3.5 Digital education

Digital education is both an opportunity for enhancing access but also can lead to challenges in terms of quality education and inclusion⁴⁴.

- Please indicate the measures taken to ensure the provision of quality digital education (several items may be ticked):

☒ Digital technology use in education is provided for in the legal framework.

Please indicate the relevant text and provisions:

Clause (c) of the 1st paragraph of the 301st article of the Eleventh Chapter of the Presidential 2024 Annual Program 661.1, 661.4, P. 661, P. 662, P. 663, P.664, P.665, P.666, P.667, P.668, P.670, P.672, P.675, P.676, P.678, P.680, P.681 Policy and Measures Articles

Target: The education system will be made more resilient and flexible to cope with extraordinary situations. (12th Development Plan p.666 -2024-2028; https://www.sbb.gov.tr/wp-content/uploads/2024/06/Twelfth-Development-Plan_2024-2028.pdf)

Policy/Measure 666.2: Steps will be taken to address the consequences of disruptions to education during exceptional circumstances, mitigating the resulting learning setbacks.

Activities:

1. The content of the Education Information Network Portal will be enriched by aligning it with the curricula and its effective use will be popularized.
2. In times of crisis when face-to-face education is completely interrupted, the education process will be continued uninterruptedly through distance education.
3. Uninterrupted service will be provided from the platforms developed or supported.

Target: Proper use of technology in education will be ensured, technology literacy will be increased and inequalities arising from the use of technology will be reduced. (12th Development Plan p.667)

Measure 667.3: Digital content used in teacher training will be enriched.

Activity 1: 1. Technology-focused learning scenarios will be developed to support teachers' effective use of innovative technologies and digital tools.

Medium Term Program (2024-2026) Digital Transformation 4 Measures:

... "Public administration will make the utmost use of digital technologies in enabling governance and improving public services. In this context, innovation and procurement efficiency will be enhanced in the use of digital technologies in the public sector, and the use of cloud computing and open-source software will be promoted to generate value from data. An effective data governance mechanism covering the entire public sector will be established."....

☒ Core legislations, policies, strategies or plans for the management, privacy, security, storage, transfer, use, and sharing of education data internally and externally to ensure the right to privacy of learners and education stakeholders (e.g., informed consent, transparent usage policies, etc.)

☒ Regulatory framework establishes minimum education standards for digital education to which all actors in education must comply.

☒ Measures to remove barriers to accessing digital content⁴⁵, including ensuring access to curriculum-aligned digital content available on free, public, multi-modal national platforms; high-quality content is available in core subjects, official national language(s), and designed with inclusive features to assist learners with disabilities.

☒ Digital skills incorporated into pre- and in-service teacher and leadership training curricula to create a culture of digital innovation and growth anchored in equity and inclusion that enables ongoing professional development for existing and emerging staff.

☒ Future-ready skills (including digital skills, data and AI competencies, critical thinking, etc.) integrated into formal curriculum at all levels of education

☒ Measures address the digital divide, including ensuring access to reliable electricity, meaningful internet connectivity at school and at home, devices suitable for learning and teaching, safe and sustainable software and secure platforms, and integrated education data systems.

☐ A well-established, sustainable, and cost-effective budget secured from a range of funding sources and intersectoral cooperation, supported by impact focused reporting linked to regional strategic goals.

- Please elaborate on each of the measures taken:

⁴⁵ Lack of internet connection, basic infrastructure or devices.

1. Online trainings and professional development studies are organized for the professional development of teachers. Both online and face to face teacher trainings are organized. In this way effective use of technology will be ensured, technology literacy will be increased and inequalities arising from technology use will be reduced.

2. Technology-focused learning scenarios are developed in 6 main branches. It was implemented to ensure the effective use of technology in learning environments, to improve teachers' skills in preparing scenarios and to train expert teachers in this field. This project aims to increase the effectiveness of technology investments made by MoNE and to support the active use of technology in education by teachers, especially smart boards. In this context, technology-focused course flows are prepared with our teachers who follow innovative practices and use technology effectively.

3. Interdisciplinary learning approach with innovative classes. Under the auspices of MoNE, efforts are ongoing to design innovative learning environments that support the use of digital technology and encourage active learning. In this context, innovative classrooms with flexible modular furniture and digital equipment will be established in 500 schools at the middle and high school levels in all provinces, enabling interdisciplinary learning practices. It aims to create more flexible digital classrooms using new technologies such as robotics and coding, compared to traditional classrooms. At the core of this initiative, in addition to setting up classrooms, is the enhancement of teachers' capacities. This includes how they can conduct lessons in such learning environments, implement learning scenarios, and especially involve skill-based learning scenario development and practices.

4. Improving the digital skills of all teachers with the teacher IT network(ÖBA).

In order to support teachers on current technology topics in education, contents in the fields of artificial intelligence, coding, innovative applications, digital teaching processes, thinking skills, digital literacy and effective use of technology are offered on the ÖBA platform. Contents identified through field research and prepared for teacher needs are available on ÖBA as online professional development opportunities. It is aimed to meet the needs of teachers arising from today's technological developments with professional development opportunities supported by digital competencies.

5. A strong structure in the provinces; professionally trained FATİH Project trainers.

FATİH project was initiated in 2010 to ensure equal opportunities in education and training and to improve the technology in our schools for the effective use of information technology tools in lessons by appealing to more sensory organs in the learning –teaching process. While creating the solution based on these principles, the success factors were based on 5 basic principles (Accessibility, efficiency, equality, measurability and quality). Since that time internet access to all schools and installation of smart boards have been realized. FATİH Project trainers and information technologies counsellors organize local and central trainings to increase the digital competencies of teachers. The trainers carry out courses and produce projects for dissemination of educational technologies.

6. By minimize the limits of education (time, place, cost) through distance learning technologies and in order to provide individuals with access to lifelong learning opportunities through distance education, the Public Education Centers Information Network (HEMBA) Platform has been established. HEMBA is available for Turkish citizens aged 15 and above. With HEMBA, the contents of adult education have been transferred to a digital platform. In the 2023, 557,283 citizens have benefited from 108 courses through the HEMBA system.

7. In the context of basic education, primary education-based teaching programs that include digital competencies are implemented in elective courses such as "robotic coding, artificial intelligence applications and project design and applications".

8. Various textbooks contain a variety of digital content that students can access via QR codes.

- What challenges were encountered in digital education provision (check all that apply)?

- | | |
|--|---|
| ☐ Lack of quality, curriculum-aligned digital teaching and learning content that supports flexible learning and teaching pathways | ☒ Limited access to internet and/or electricity |
| ☐ Lack of equity and inclusion in digital learning solutions | ☒ Limited access to hardware (devices, chargers, etc.) |
| ☐ Inadequate safety measures and IT support to respond to issues of child online safety or reduce cyber security risks | ☐ Difficulty in regulating the use of digital education solutions |
| ☐ Other: | ☒ Difficulty in sustainably financing digital education solutions at national scale |

- ☐ Lack of digital skills development for meaningful use of digital technology in teaching practice
- ☐ Disjointed or fragmented solutions that are not centrally systematized or regulated

When investing in hardware and software, positive discrimination is made to ensure equality of opportunity by taking into account the regional, demographic and socio-economic structure. If a smart board or computer lab. is to be installed in a school, a village school is preferred.

- Please elaborate. Brief quantitative information may be added.

Teacher	Education	Digital	Ecosystem	Project	2023-2026
https://www.unicefturk.org/yazi/ogretmen-egitimi-dijital-ekosistemi-projesi					
The project aims to enhance the quality of education services offered to students by improving teachers' knowledge and skills in digital education processes, thereby strengthening national institutional capacity. The target audience includes teachers, school administrators, students, and parents. The project objectives include creating a digital teacher competency framework, developing digital learning content and teaching tools, establishing a digital learning monitoring and evaluation system, setting up eight teacher learning laboratories, enhancing a digital education platform, raising public awareness about digital education ecosystems, providing online training to 200,000 teachers to improve their digital skills, and conducting field visits to assess project implementation.					

4 Strengthening governance systems

For reference: The Education 2030 Framework for Action states "to ensure quality education and conditions for effective education outcomes, governments should strengthen education systems by instituting and improving appropriate, effective and inclusive governance and accountability mechanisms; quality assurance; management information systems; transparent and effective financing procedures and mechanisms; and institutional management arrangements, as well as ensure that robust, timely and accessible data are available" (para. 18).

- Please indicate the measures taken in terms of governance (several items may be ticked):

☒ Monitoring mechanisms to assess compliance with the right to education obligations, including through management information systems.

☒ Monitoring results are made public. [Please provide the link:](#)

https://sgb.meb.gov.tr/www/icerik_goruntule.php?KNO=550

<https://istatistik.meb.gov.tr/>

<https://hbogm.meb.gov.tr/www/izleme-degerlendirme-raporlari/kategori/104>

☒ Monitoring processes are participatory, inclusive and regular.

☒ Sector-wide and multisector approach is adopted to education governance.

☒ Financial resources are effectively allocated to prioritise the provision of free, quality, public education and are adequately budgeted for in government plans.

☒ The decision-making process for the allocation of resources to education is transparent.

☒ Ensuring crisis-sensitive and disaster risk-informed planning and programming, including the provision of quality education in emergencies.

☐ There is a certain degree of decentralization in favour of local public authorities and autonomy for schools to ensure context relevance of their teaching.

- [Please elaborate on each of the measures taken:](#)

- [What challenges were encountered in terms of governance?](#)

☐ Budgetary constraints

☐ Lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels

☐ Poor dialogue with teachers' trade unions

☐ Other:

☐ Absence of supportive/ inconsistent/obsolete legal and policy environment

☐ Lack or weakness of monitoring systems – including the lack of reliable data

- [Please elaborate. Brief quantitative information may be added.](#)

III. Methods used to draw the attention of the various authorities in the country to the instruments

For reference: UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (Several items may be ticked)

- ☐ Translation of the Convention/Recommendation into the national and possibly local languages
- ☐ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education including through appropriate materials and resources
- ☐ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments
- ☐ Other:

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